

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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SHAQUANA SMALLS,

Plaintiff,

-against-

Sergeant PAUL GEBBIA, Shield No. 5539; Police
Officer KAMAAL SPENCE, Shield No. 28512;
and JOHN and JANE DOE 1 through 10,
individually and in their official capacities (the
names John and Jane Doe being fictitious, as the
true names are presently unknown),

Defendants.

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COMPLAINT

15 CV 7321

Jury Trial Demanded

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of plaintiff's rights under the Constitution.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the Constitution of the United States.

3. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331 and 1343.

4. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 (b) and (c).

JURY DEMAND

5. Plaintiff demands a trial by jury in this action.

PARTIES

6. Plaintiff Shaquana Smalls (“plaintiff” or “Ms. Smalls”) is a resident of Bronx County in the City and State of New York.

7. Defendant Sergeant Paul Gebbia (“Gebbia”), Shield No. 5539, at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Gebbia is sued in his individual and official capacities.

8. Defendant Police Officer Kamaal Spence, Shield No. 28512 (“Spence”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Spence is sued in his individual and official capacities.

9. At all times relevant defendants John and Jane Doe 1 through 10 were police officers, detectives or supervisors employed by the NYPD. Plaintiff does not know the real names and shield numbers of defendants John and Jane Doe 1 through 10.

10. At all times relevant herein, defendants John and Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York and the NYPD. Defendants John and Jane Doe 1 through 10 are sued in their individual and official capacities.

11. At all times relevant herein, all individual defendants were acting under color of state law.

STATEMENT OF FACTS

12. At approximately 11:30 a.m. on February 22, 2015, Ms. Smalls was lawfully inside of her apartment at 1333 Webster Avenue in the Bronx.

13. Without her permission and, upon information and belief, without a valid search warrant, defendants stormed into Ms. Smalls' home.

14. Dressed only in a short nightgown and with plaintiff's small children in the home watching, defendants violently grabbed Ms. Smalls and arrested her without probable cause or reasonable suspicion to believe she had committed any crime or offense.

15. Defendants tightly handcuffed Ms. Smalls and forcefully took her out of her home.

16. Plaintiff was taken to a police precinct.

17. At the precinct defendants falsely informed employees of the Bronx County District Attorney's Office that they had observed plaintiff obstruct governmental administration.

18. At no point did the officers observe Ms. Smalls commit any crime or offense.

19. In significant pain from the excessively tight handcuffs, Ms. Smalls was

taken from the precinct to Lincoln Hospital Center and treated for bilateral pain to her wrists.

20. After being treated, plaintiff was returned to the police precinct.

21. Ms. Smalls was eventually taken to Bronx Central Booking, where after approximately twenty hours in custody, plaintiff was released without seeing a judge.

22. Ms. Smalls suffered damage as a result of defendants' actions. She was deprived of her liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and damage to her reputation.

FIRST CLAIM
Unlawful Detention and Search

23. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

24. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched plaintiff without reasonable suspicion.

25. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages herein before alleged.

SECOND CLAIM
False Arrest

26. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

27. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

28. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

THIRD CLAIM
Unreasonable Force

29. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

30. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on plaintiff.

31. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FOURTH CLAIM
Failure To Intervene

32. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

33. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

34. Accordingly, the defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

35. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: September 16, 2015
New York, New York

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